October 16, 2026

The Honorable Jamie L. Anderson
Hennepin County District Court
300 South Sixth Street
Minneapolis, MN 55487

2026 OCT 16 P 3:05

Re: *Lu and Hu v. Fire Insurance Exchange*, Court File No. 27-CV-26-11606 — Notice Under Scheduling Order ¶ 6: The Parties Have Not Agreed on a Neutral

Dear Judge Anderson:

Paragraph 6 of the Court's September 8, 2026 *Scheduling Order & Order to Mediate* requires the parties to notify the Court in writing of the agreed-upon neutral and the mediation date by October 27, 2026. The parties have not agreed on a neutral.

The parties conferred in writing. On September 15, 2026, Plaintiffs proposed that, if the parties could not agree, the Court be asked to appoint a Qualified Neutral under Minn. Gen. R. Prac. 114.04(b). On September 25, 2026, Defendant suggested Roger Kramer or Charles Noel. On October 16, 2026, Plaintiffs informed Defendant's counsel that they do not agree to either and would ask the Court to make the selection.

Plaintiffs therefore respectfully request that the Court:

(a) select a Qualified Neutral under Minn. Gen. R. Prac. 114.04(b), other than Mr. Kramer or Mr. Noel, whom the parties have already considered without agreement; and

(b) direct the parties to schedule the mediation and notify the Court of the date within 21 days of the appointment.

Respectfully submitted,

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cc: Kevin J. Kennedy and Mary J. Baskfield, *Counsel for Defendant* (by email)